

The United Kingdom of Great Britain and Northern Ireland (UK), with a population of 60.8 million, is a constitutional monarchy with a multiparty, parliamentary form of government. Citizens elect representatives to the House of Commons, the lower chamber of a bicameral legislature. They last did so in free and fair elections in 2005. Members of the upper chamber, the House of Lords, occupy hereditary or appointed seats. Civilian authorities maintained effective control of the security forces.

The government generally respected the human rights of its citizens. The law and judiciary provide effective means of addressing individual instances of abuse; however, there were some reports of police misconduct and occasional abuse of detainees and other persons by police and military personnel and employees of government contractors. There were also reports of overcrowded prisons and some inadequate prison infrastructure; violence and discrimination against ethnic and religious minorities, women, and children; and trafficking of persons into the country.

In Northern Ireland compromise between Catholic and Protestant politicians led to the implementation, beginning on May 8, of the 2006 St. Andrews Agreement on the devolution of power from the center to Northern Ireland's political parties. With power sharing came fewer reported deaths from political violence and an improved human rights environment.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no reports that the government or its agents committed any politically motivated killings; however, the Independent Police Complaints Commission (IPCC) reported that police shot and killed five persons in the performance of their duties.

The police ombudsman of Northern Ireland announced on January 22 that a lengthy investigation had revealed that a police informer from the Ulster Volunteer Force (a loyalist paramilitary organization) was responsible for the 1997 killing of Raymond McCord Jr., and that he and other police informants were themselves responsible for up to nine additional deaths and had possible links to five others. The ombudsman also revealed that the informant responsible for McCord's death had been protected by his handlers from the Special Branch of the Royal Ulster Constabulary, who blocked a police investigation into McCord's murder and continued to pay his killer after McCord's death. The ombudsman also announced that the withholding of evidence in all the cases she investigated had impeded an effective prosecution of those responsible. The Historic Enquiries Team, which was set up in 2006 under the Police Service of Northern Ireland, established a special group to look into issues arising from the ombudsman's report, including a reexamination of the deaths of 10 persons named in the report.

On March 13, a military court-martial acquitted six of seven soldiers charged with responsibility for the 2003 death of Iraqi civilian Baha Musa. Musa was among a group of individuals detained in Iraq after a military raid on a suspected terrorist location. The prosecution alleged that some of the detainees were bound, blindfolded, and beaten while in detention. An autopsy on Musa found that he had over 90 separate injuries over his body. The court-martial sentenced one soldier to one year in prison and dismissed him from the army for inhumane treatment.

On June 13 the Law Lords, the country's highest court of appeal, ruled that Musa's family was entitled to seek an independent investigation into his death under the European Convention on Human Rights, since he was detained by British forces. The judges rejected a defense ministry claim that the Human Rights Act does not apply to British soldiers serving outside of the country. However, the judges agreed that the act did not apply to five other cases in which British soldiers on military patrols shot and killed individuals who were not under detention. At year's end prosecutors and defense ministry attorneys were developing arguments about whether or not the March 13 court martial was a sufficient and appropriate mechanism to answer violations of the Human Rights Act.

On May 28, British authorities requested the extradition from Russia of Andrei Lugovoy in connection with the 2006 death by radioactive poisoning of former Russian intelligence officer Alekandr Litvenenko. Litvenenko had been highly critical of the Russian political leadership, and many observers believed the killing was politically motivated. Russian authorities rejected the extradition request.

On October 1, a trial opened on charges that the London Metropolitan Police Service (MPS) failed to provide for the safety of Jean Charles de Menezes, a Brazilian citizen whom police shot and killed after wrongly identifying him as a terrorist in the aftermath of attacks on the London subway in 2005. The trial followed an IPCC investigation that found evidence that 15 officers involved in the incident may have committed criminal or misconduct offenses. The Criminal Prosecution Service (CPS), however, decided not to prosecute the officers individually but instead brought charges against the MPS. On November 1, a jury found the MPS guilty of breaching health and safety laws. The trial judge fined the MPS approximately \$347,483 (175,000 pounds) and ordered it to pay \$764,464 (385,000 pounds) trial costs.

On October 20, Paul Quinn, who lived in South Armagh, Northern Ireland, was lured over the border to a farmhouse in the Republic of Ireland and killed. The victim's family blamed the Irish Republican Army (IRA), which has used this method against their enemies in the past. Sinn Fein leaders denounced those responsible for Quinn's murder and asked the public to work with the police in its investigation. On November 12, a member of the Independent Monitoring Commission (IMC), which monitors developments in Northern Ireland, announced that Quinn had been murdered by either current or former members of the IRA.

On December 21, a judge acquitted a man of involvement in the 1998 Omagh bombing that killed 29 persons. The defendant was cleared of 56 counts relating to the bombing and other attacks on police and military sites. The judge accused police of having a "slapdash approach" to gathering evidence that resulted in unreliable DNA evidence. He ordered an inquiry into the conduct of two police officers accused of altering their statements to make evidence against the defendant appear stronger. The families of the victims planned to file a civil court action against members of a dissident faction of the IRA for their involvement in planning the 1998 bombing.

Proceedings continued in three cases involving allegations of government involvement, collusion, or culpability in killings during the conflict in Northern Ireland in the 1980s and 1990s.

b. Disappearance

There were no reports of politically motivated disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, there were allegations that individual members of the police

occasionally abused detainees and allegations that guards under contract to immigration authorities abused deportees while returning them to their home countries.

On April 30, a soldier pled guilty at a court-martial to inhumane treatment of Iraqi detainees in the trial of soldiers charged with killing Iraqi civilian Baha Musa in 2003. The soldier was sentenced to jail for one year and dismissed from the army. In connection with this case, the **Law Lords ruled that detainees in military custody are covered under laws prohibiting torture and inhuman or degrading treatment.**

According to an October 5 article in the *Independent* newspaper, contractor escort teams assisting in the deportation of failed asylum seekers to their home countries beat or racially abused hundreds of them. The newspaper and an organization that defends failed asylum seekers compiled a dossier of 200 cases, some of which included allegations of physical and sexual assault. In one instance, Armand Tchuibeu, a Cameroonian national whose asylum application was rejected in 2006, asserted that one of the guards who drove him to Heathrow airport on January 29 punched him in his ribs and his neck, injuring him to a point that his knee required a cast and his deportation had to be delayed. The government responded that it was concerned about all allegations of assault or abuse and turned those cases over to police to be investigated. Mr. Tchuibeu was eventually returned to Cameroon but is currently in the process of bringing a civil claim of assault against the security company that provided the guards. A Foreign Office official said all the cases in the *Independent* article were investigated at the time of the complaints, and no instances of abuse were uncovered.

In Northern Ireland, the IMC reported on September 17 a continued marked reduction in "punishment attacks" and intimidation in areas under the respective influence of

loyalist and republican paramilitary groups. However, there were some violent incidents. Police blamed the Protestant gang Ulster Defense Association for incidents of violence during the summer; one policeman was shot and wounded. Police reportedly intercepted a car bomb from a dissident IRA group during the summer. In addition, IRA dissidents were held responsible for two separate shootings of off-duty police officers in November. Nevertheless, Sinn Féin's January endorsement of cooperation with the Police Service of Northern Ireland led to a more peaceful environment and led directly to Sinn Féin's participation in Northern Ireland's power-sharing government.

On June 22, the secretary of state for Northern Ireland announced the formation of a consultative group to address issues relating to the decades-long troubles. The group is co-chaired by Lord Eames, the former archbishop of Armagh, and former priest Denis Bradley, the first vice-chairman of the Policing Board. The consultative group's mandate was to find consensus among the communities in Northern Ireland about the best way to deal with the legacy of the past. It was scheduled to report its findings in the summer of 2008.

Prison and Detention Center Conditions

Prison conditions generally met international standards, and the government permitted visits by independent human rights observers; however, overcrowding and poor facilities continued to be problems. According to a study by the NGO Forum for Preventing Deaths in Custody, as of September 21, there was an increase in the number of suicides compared to the same period in 2006. On May 1, the responsibility for oversight of prisons moved from the Home Office to the new Ministry of Justice.

On December 1, the prison population in England and Wales was reported to be 81,455 in facilities designed to accommodate 71,834. Prison governors warned that jails

were at a "bursting point." On June 19, Secretary of State for Justice Charles Falconer announced a plan to release up to 1,800 nonviolent prisoners before their sentences had expired to help alleviate crowding. Prisoners in England and Wales convicted of offenses carrying sentences of no more than four years were eligible for release up to 18 days early. In Scotland, as of December 21, 7,392 inmates were reported in prisons with an official capacity of 6,365. On November 28, Justice Secretary Kenny MacAskill announced a similar policy of early releases. As of December 18, Northern Ireland reported a prison capacity of 1,503 with a prison population of around 1,400.

Authorities attributed prison overcrowding in all parts of the country in part to a rise in the recidivism rate from 52 percent in 1992 to 67 percent during the year. In Scotland the prison population rose 5 percent, and authorities noted a small increase in Northern Ireland.

The Scottish Prison Complaints Commission reported that between April 2005 and March 2006, there were 24 deaths in custody, including eight suicides. As of October 9, two persons in Northern Ireland had died in custody, but the causes of death had not been determined. In a report on September 21, the Forum for Preventing Deaths in Custody claimed that there were over 600 deaths a year in English and Welsh facilities of all kinds and attributed that figure directly to prison overcrowding. According to the Ministry of Justice, there was an increase of almost 40 percent in the number of suicides during the year in prisons in Wales and England (92 deaths compared to 78 in 2006), an upward trend that has continued for several years. The ministry reported that an additional 100 prisoners were saved from suicide attempts. Several human rights nongovernmental organizations (NGOs), joined by opposition party members, blamed the increase on overcrowding. The Ministry of Justice claimed there is no agreed evidence that overcrowding exacerbates self-harm

in prison. The ministry stated that sharing a cell is actually a known protective factor against suicide.

There are separate prison facilities, or at a minimum separate cells, for men and women. Officials condemned the practice of holding juveniles with adult prisoners; however, cases of such detention occurred, sometimes involving juveniles under 16 years of age. Pretrial detainees were not generally held with convicted prisoners, but there were exceptions.

The government permitted independent monitoring of prison conditions by local and international human rights groups, the media, the International Committee of the Red Cross, and the independent International Centre for Prison Studies based at Kings College, London. Some of the organizations undertook monitoring missions during the year.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention, and the government generally observed these prohibitions, but critics charged that some procedures introduced to combat terrorism constituted preventative detention.

The Role of the Police and Security Apparatus

Civilian authorities maintained effective control over the regional police forces, and the government has effective mechanisms to investigate and punish abuse and corruption. There were no reports of impunity involving the security forces.

Arrest and Detention

In most cases police officers may arrest persons only if they have reasonable grounds for suspecting that someone has committed or is about to commit one or more listed "arrestable offenses." Even if the crime in question is not an arrestable offense, a police officer may arrest a person without a warrant, provided the officer believes the arrest

is necessary to prevent physical injury or damage to property. The law gives authorities certain additional powers in some terrorism-related cases. Legislation that entered into force in 2006 permits police to detain terrorism suspects for up to 28 days before formally charging them; however, they are entitled to counsel during this period. The government used this law to detain 17 individuals whom they suspected were connected to an alleged August 2006 trans-Atlantic terrorist plot that would have destroyed aircraft. On July 11, the House of Commons approved a one-year extension of the 28-day detention authority.

The law gives defendants awaiting trial the right to bail, except those judged to be flight risks, likely to commit another offense, suspected terrorists, or in other limited circumstances. Detainees may make telephone calls and have legal representation, including state-provided counsel if they are indigent.

The law permits extended detention of foreigners who are suspected of being terrorists but cannot be deported immediately because of the risk they would be tortured or executed in their countries of destination. Such individuals may appeal their designation as terror suspects.

The law permits a judge (or the home secretary, with a judge's permission) to impose "control orders" on individuals suspected of involvement in terrorism-related activities, regardless of nationality or perceived terrorist cause. The control orders include a range of restrictions up to house arrest.

e. Denial of Fair Public Trial

The law provides for an independent judiciary, and the government generally respected judicial independence in practice.

Trial Procedures

The law provides for the right to a fair trial, and an independent judiciary generally enforced this right.

The law generally allows for jury trials. In England and Wales there is provision for judge-only trials in rare exceptions when the jury has been intimidated, when "compelling new evidence" arises after a previous acquittal, or when evidence of a defendant's previous misconduct is to be introduced. In Northern Ireland the practice of trials by a single judge, employed during previous decades in response to intimidation of juries by paramilitaries, ceased to be the norm on July 31. However, as in the case of England and Wales, nonjury trials may be held in cases involving possible intimidation of juries. Scotland allows jury trials in criminal and civil cases. A majority vote determines guilt or innocence and an even vote is equivalent to a not-guilty verdict

Criminal proceedings must be held in public except those in juvenile court and those involving public decency or security. In a trial under the Official Secrets Act, the judge may order the court closed, but sentencing must be public.

Defendants have the right to be present at their trials, to consult with an attorney in a timely manner, and to question witnesses against them. Defendants have access to government-held evidence relevant to their cases, with some exceptions, including instances in which information pertaining to a suspect is acquired through sources associated with national security.

Defendants have the right to appeal to successively higher courts; they also enjoy a presumption of innocence until proven guilty. Indigent defendants have the right to free counsel of their choice, with some exceptions. The law provides for the right to a fair trial, and an independent judiciary generally enforced this right.

Political Prisoners and Detainees

There were no reports of political prisoners or detainees.

Civil Judicial Procedures and Remedies

There is an independent and impartial judiciary in civil matters, including access to a court to bring lawsuits seeking damages for, or cessation of, a human rights violation. Administrative remedies were also available. There were no reports of problems enforcing domestic court orders.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions, and the government generally respected these prohibitions in practice.

The European Commission (EC) expressed concern that British authorities were not adequately protecting personal data that they were collecting or mandating others to collect. The criticism came as legislation requiring telephone companies to retain information pertaining to landline and cellular telephone calls took full effect. The law provides that retained information may be made available to over 700 official organizations, including police, National Health Service, and other social services. The EC asserted that oversight was inadequate. The Ministry of Justice, responsible for implementing the legislation, denied that the data was at risk of being compromised; however, throughout the year, various government organizations were identified and criticized for losing or misplacing the personal, professional, financial, and medical information of the population.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The law provides for freedom of speech and of the press, and the government generally respected these rights in practice. An independent press, an effective judiciary, and a functioning democratic political system combined to ensure freedom of speech and of the press.

On October 1, the Racial and Religious Hatred Act, passed by Parliament in January 2006, became law. The act makes it an offense to use "threatening words or behavior" towards a religious group. Such acts may include words, behavior, or display of written material; publishing or distributing written material; the public performance of a play; distributing, showing, or playing a recording; broadcasting or including a program in a program service; or the possession of written materials or recordings with intent to display, publish, distribute, or include such materials in a program service. The law was not invoked during the year.

A decision by the prestigious Oxford Union debating society to invite two individuals associated with Holocaust denial-Nick Griffin, leader of the right-wing British National Party, and David Irving, who served a prison sentence for Holocaust denial in Austria-created controversy. Jewish, Muslim and other student organizations condemned the invitation, while free-speech activists supported it. On the scheduled day of the debate, November 27, police had to intervene to separate the speakers from protesters, and the debate never materialized due to the hostile climate and vociferous nature of the protesting students.

Internet Freedom

There were no government restrictions on access to the Internet. Individuals and groups could engage in the peaceful expression of views via the Internet, including by e-mail. The law permits communications data surveillance, to include Internet usage, in the interests of national security, to prevent or detect a crime, or in the interests of public safety. The use of surveillance requires the approval of the secretary of state, who authorizes an "interception warrant," which must name or describe either one person or a single set of premises where the interception is to take place. However, in limited

circumstances the home secretary may issue a "certified" interception warrant, eliminating the requirement to specify a person or premises. Certified warrants are intended only for communications sent or received outside the country. This could cover interception of communications channeled through a foreign Internet service provider. An independent "interception of communications commissioner" oversees interception warrants, and the Investigatory Powers Tribunal investigates public complaints of surveillance abuses. The government aggressively pursued those who use the Internet to incite others to commit acts of terrorism.

The Internet was widely available throughout the country and was available at no cost in public libraries. According to Nielson Net Ratings, approximately 63.8 percent of the population used the Internet.

Academic Freedom and Cultural Events

There were no government restrictions on academic freedom or cultural events. On May 30, the University and College Union, representing college teachers and related professionals, rejected a government request that universities monitor and report suspicious behavior among Muslim students.

b. Freedom of Peaceful Assembly and Association

The laws provide for freedom of assembly and association, and the government generally respected these rights in practice.

c. Freedom of Religion

The law provides for freedom of religion, and the government generally respected this right in practice. The government does not consider the Church of Scientology and the Unification Church to be religions for purposes of issuing visas for ministers of religion or missionaries. Since the Church of Scientology does not fall within the definition of religion in the charity law, its chapels did not

qualify as places of worship, and authorities did not consider its ministers to be ministers of a religion. There were no reports of specific visa denials during the year.

The law requires religious education in publicly maintained schools. Localities determine the content of religious instruction, but it must reflect the predominant place of Christianity in the cultural and historical context of the nation while taking into account the teachings and practices of the country's other principal religions, and it must refrain from attempting to convert pupils. All parents have the legal right to request that their children not participate in religious education, but the school must approve this request.

Schools in England and Wales must also provide a daily act of collective worship, of "a wholly or mainly of a broadly Christian character." Students of other faiths may offer prayers of their own religion. According to a 2005 survey by the British Broadcasting Company, a considerable number of schools were not participating in this form of worship. Teachers have the right not to participate in collective worship, without prejudice.

On March 19, the Department of Education provided guidance allowing schools to prohibit full-face veils in school but urging schools to "act reasonably in accommodating religious requirements," under human rights legislation. Some Muslim groups, including the Islamic Human Rights Commission, said it was inappropriate for the government to provide guidance that regulated Muslim communities in matters concerning the expression of their faith. There were no prohibitions on the wearing of headscarves in schools.

Other dress code restrictions in schools were sources of controversy. On November 13, Liberty, a London human rights organization, announced legal action against a Welsh school for excluding a Sikh student for wearing a

kada, a symbol of the Sikh religion. The High Court was scheduled to hear the case in early January 2008.

On July 16, the High Court ruled against a Christian secondary school student who had been punished for her persistence in wearing a "chastity ring." The school argued that the ring fell under the category of jewelry not permitted as part of the school uniform. The student cited clothing worn by some Islamic students that also deviated from the usual uniform. The court ruled that the ban on chastity rings did not constitute "unlawful interference" with her Christian faith. The judge refused permission to appeal, although the student can still petition the appeal court to hear the case.

Societal Abuses and Discrimination

An IPCC report covering the period 2006-2007 indicated that authorities prosecuted 823 alleged hate crimes related to faith in that period, a 25 percent decrease from the previous two-year period. According to the Home Office, the police recorded 50,000 reports of racially or religiously motivated incidents in 2005. Many observers contended that the Home Office methodology for determining whether crimes are hate crimes had the effect of underreporting offenses motivated in part by race or religion. In addition, many such incidents were not reported at all. A survey that included incidents not reported to police estimated that in 2005 there were 260,000 such offenses in 2005. The survey was conducted under the auspices of the Home Office and based on interviews with a wide sample of respondents. In the same year, the London metropolitan police reported 11,799 incidents of racist and religious hate crime in London.

On January 22, after a review of company dress code policy and following considerable public pressure, British Airways (BA) reversed its policy and permitted employees to wear visible religious symbols, including crosses. Over 100 members of parliament, the prime minister, and

various Christian organizations and church leaders had urged the reversal following press coverage in October 2006 of a BA refusal to allow an employee to wear a visible small Christian cross necklace, while permitting Sikh and Muslim employees to wear turbans and veils. A Jewish employee, Daniel Rosenthal filed a grievance over BA's refusal to permit him to observe the Jewish Sabbath. The employee was widely supported in his position by both Jewish and non-Jewish religious leaders. BA indicated that the employee had sought and obtained a transfer into a section (customer services) that at times required weekend work and offered to assist him transferring to another position.

In December 2006 the press reported that a second airline, "bmi," rejected the request of a flight attendant who wished to carry a Bible with her on her flights to Saudi Arabia. The airline stated that the company was following guidelines on Islamic Law from the Home Office and reportedly offered the attendant shorter routes to other destinations where she could take a Bible but declined to change its rules for flights to Saudi Arabia. She appealed the refusal to the Employment Tribunal, which did not rule by year's end.

The press reported several incidents in which airport workers were initially fired or fined for religious displays in their offices or on their persons but were ultimately reinstated.

The Muslim Council of Britain (MCB) reported a significant increase in anti-Muslim incidents following a car bomb attack at the Glasgow Airport and the discovery of car bombs in central London in July. The MCB also reported an increase in the number of attacks against imams and mosques throughout the country. The MCB placed some responsibility on the press for a "clearly growing anti-Muslim climate."

The Muslim community continued to criticize police use of "stop and search" powers, as well as the 28-day detention powers for terrorism suspects.

The IPCC continued to work closely with Muslim groups to address concerns about the way police treated Muslims. National and regional forums were a key element of this effort. The IPCC publicized its services among Asian communities via advertisements, community meetings, and media articles.

The Community Support Team, an NGO within the Jewish community, and a police unit that encourages community policing in London, reported a slight decrease in acts of anti-Semitism, although the number remained significantly higher than a decade earlier.

There were many well publicized manifestations of anti-Semitism at soccer matches, particularly in games involving some London clubs located in areas where there are large Jewish communities. Songs about concentration camps and gas chambers became regular features at matches. Following the appointment of a Jew, Avram Grant, as manager of the Chelsea team on July 8, the club received anti-Semitic hate mail.

Calls for boycotts of Israel at times appeared to some observers to reflect anti-Semitism as well as opposition to Israeli policies, although supporters of such calls denied this charge. On May 31, Britain's University and College Union approved by 1,538 votes to 99 a motion calling for a freeze on European funding for Israeli academic cooperation with "the occupation"; however, the union rejected other anti-Israeli resolutions. On July 4, the 42nd Biennial Delegates Conference of Britain's Transport and General Workers' Union passed a resolution calling on its 800,000 members to boycott Israeli-made products because of what they termed Israel's "criminal policies in Palestinian territories."

The law criminalizes threats or acts intended to foment religious hatred. Such acts may include words, behavior, or display of written material; publishing or distributing written material; the public performance of a play; distributing, showing, or playing a recording; broadcasting or including a program in a program service; or the possession of written materials or recordings with a view to display, publication, distribution, or inclusion in a program service.

On June 22, the secretary of state for Northern Ireland announced the formation of a "Legacy of the Past" consultative group to find consensus among the communities in Northern Ireland about the best way to deal with the legacy of the Northern Ireland conflict, including the decades of religious animosity. It was due to report its findings in the summer of 2008.

For a more detailed discussion, see the *2007 International Religious Freedom Report*.

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The law provides for freedom of movement within the country, foreign travel, emigration, and repatriation, and the government generally respected these rights. Authorities increased their use of "stop and search" procedures, which permit police to stop and search individuals without suspecting them of a crime if the stop is conducted in an area designated as a potential terrorist target. Muslims have charged that police subjected them to this procedure disproportionately.

The government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations to provide protection and assistance to internally displaced persons, refugees, returning refugees, asylum seekers, stateless persons, and other persons of concern.

Although there is no law prohibiting exile, the government did not employ it.

Protection of Refugees

The laws provide for the granting of asylum or refugee status in accordance with the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol, and the government has established a system for providing protection to refugees. The Office of National Statistics reported that in 2006 authorities received 23,610 asylum applications. It granted 10 percent of these and provided other forms of protection to an additional 11 percent.

The government was committed to providing protection against "refoulement," the return of persons to a country where there is reason to believe that they feared persecution.

For purposes of adjudicating asylum claims, the government shifted the burden of proof to asylum seekers if they come from a country on a list of "safe countries" of origin promulgated by the home secretary, or if they passed through a country where they were not considered to be at risk, or if they remained in the country for a period of time before seeking asylum. The law permits authorities to remove an asylum applicant to another country that is deemed responsible for adjudicating an applicant's claim.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The law provides citizens with the right to change their government peacefully, and citizens exercised this right in practice through periodic, free, and fair elections held on the basis of universal suffrage.

Elections and Political Participation

Free and fair elections to the House of Commons took place in 2005. Parliamentary elections in Northern Ireland took place on March 4; elections to the Scottish Parliament

and the Welsh Assembly took place on May 3. Political parties could operate without restriction or outside interference.

The overseas territories, with a total population of approximately 212,000, have varying degrees of self-government based on the UK model, with appointed governors.

There were 126 women in the 646-seat House of Commons and 147 in the 748-seat House of Lords. There were five women in the prime minister's cabinet and another four attended cabinet meetings as necessary. An additional 30 women held other ministerial posts. There was one woman among the 12 Law Lords. There were 15 members of ethnic minorities in the House of Commons.

Government Corruption and Transparency

The law provides criminal penalties for official corruption, and the government generally implemented these laws effectively. The "loans for peerages" investigation continued to attract media attention. Police investigated whether political parties, especially the Labor Party, had in effect sold peerages or honors in return for "loans" from wealthy individuals that, unlike donations, did not have to be reported. Scotland Yard expanded its investigation to include obstruction of justice. However, on July 19, after a 16 month investigation, the CPS dropped the case on grounds of insufficient evidence.

On November 26, the Labor Party's general secretary resigned after admitting he had been aware of an arrangement whereby a major donor funded the party through proxies; he insisted he had believed the arrangement to be lawful. The prime minister denied all knowledge of the arrangement but acknowledged that the true source of these donations had not been reported as required by law. Despite opposition demands that the prime minister call in the police, he decided to let the independent Electoral Commission investigate and

determine whether to refer the matter to the police; the commission's investigation was ongoing at year's end.

The law provides for public access to information, and authorities granted access to citizens and noncitizens, including foreign media. There are numerous exceptions to the availability of government information, including those relating to national security and defense, personal privacy, and possible risks to health and safety. In some of these instances, authorities are not obliged to indicate whether relevant information exists; however, according to authorities, they are obliged to say why they are refusing a request. There are no fees for requesting information; however, there may be a bill for the cost of materials and postal fees. Government agencies may refuse a request if the cost to the government will exceed \$894 or \$1,191 (450 or 600 pounds), depending on the agency's size. There was a mechanism to appeal denials.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A variety of domestic and international human rights groups generally operated without government restriction, investigating and publishing their findings on human rights cases. Government officials were cooperative and responsive to their views.

In December 2006 the government arrested Vincent Bajinya, Charles Munyaneza, Celestin Ugirashebuja, and Emmanuel Nteziryayo after the government of Rwanda accused them, in an extradition warrant, of killing, and aiding and abetting others in the killing, of Tutsis in 1994. The authorities also cancelled the refugee status of Ugirashebuja and Munyaneza and began the extradition process.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The law prohibits discrimination based on race, nationality, gender, sexual orientation, or disability, and the government was committed to enforcing these prohibitions; however, some groups continued to experience societal discrimination.

Women

Rape, including spousal rape, carries a maximum penalty of life imprisonment. According to the British Crime Survey (BCS), whose data include incidents not reported to police, there were 21,403 sexual assaults on women between April 1, 2006 and March 31, 2007. Observers expressed concern at a declining rate of successful prosecutions of rapists in England and Wales. The conviction rate was 5.7 percent, compared to a conviction rate of 33 percent in 1977. Similarly low conviction rates were reported in Scotland and Northern Ireland. The BCS estimated that one in 20 women in the UK had been raped.

The government provided shelters, counseling, and other assistance for victims of battery or rape and offered free legal aid to battered women who were economically reliant on their abusers.

The law prohibits domestic violence, including spousal abuse, and authorities strictly enforced the law in cases reported to them. The courts imposed punishment ranging up to life imprisonment; however, violence against women continued to be a problem. The law provides for injunctive relief, personal protection orders, and protective exclusion orders (similar to restraining orders) for female victims of violence.

According to BCS estimates based on interviews and roughly covering the period from October 31, 2005, to September 1, 2006, domestic crime (2,471,000 cases) represented 16 percent of total crime committed in England and Wales. One third of violent incidents against women were domestic violence.

Police and NGOs estimated that approximately 12 honor killings occur each year, although no formal statistics are kept. As of November 22, an estimated 100 homicides were under investigation as possible "honor killings." Personnel of the International Campaign Against Honor Killings estimated that the number of women seeking their help quadrupled between 2005 and the end of the year. Many observers regarded honor killings as the extreme end of a spectrum that includes abductions, forced abortions, imprisonment, mental and physical abuse, and rape. It was generally considered an "imported crime," since a majority of the incidents involved families from Asia, Turkey, Algeria, and Nigeria. Many of the crimes involved hiring outside "hit men"; in other cases the perpetrator was the youngest member of the family who was supervised by older family members.

On June 11, the father and uncle of Kurdish refugee Banaz Mahmod, together with a third man, were found guilty of the murder in the honor killing of Mahmod in January 2006. The family disapproved of her boyfriend. She was tortured and raped before she was killed. On July 20, the father and uncle were sentenced to 20 and 23 years in prison, respectively, while a third person was sentenced to 17 years. Another individual was scheduled to appear in court in early 2008 to face charges connected with the killing.

NGOs raised concerns that police were not adequately trained to identify and respond when women sought protection. For example, Banaz Mahmod repeatedly warned police that she feared for her life as a result of threats from her father and uncle.

Prostitution is legal for adults; however, such related offenses as loitering for the purpose of prostitution and maintaining a brothel are illegal. Authorities and NGOs estimated that 100,000 persons in the country were engaged in prostitution.

The law prohibits child sex tourism and allows authorities to prosecute citizens or residents for offenses committed abroad. There were no reports of such prosecutions.

The law prohibits sexual harassment and provides penalties of up to five years' imprisonment; authorities followed up on the isolated complaints that were filed.

Although women enjoy the same rights as men, including rights under family and property law and in the judicial system, in practice, women experienced some discrimination. According to a 2005 Equal Opportunities Commission report, women's average hourly earnings for full-time, private-sector employment were 22.5 percent lower than those of men; in full-time public-sector jobs, women earned 13.3 percent less than men.

There was a cabinet-level minister for women and a deputy minister for women and equality. Two independent bodies were concerned with women's issues: the Equal Opportunities Commission (EOC) and Women's National Commission (WNC). The EOC supported women in discrimination cases before industrial tribunals and courts and produced guidelines for employers. The WNC is an umbrella organization representing women and women's organizations. It lobbies the government to take women's views into account and include them in public debate.

Children

The government was strongly committed to children's rights and welfare. It provided free, universal, and compulsory education until age 16 and further free education until age 18. According to the UN Educational, Scientific, and Cultural Organization statistics from 2006, all primary-school-age children and over 90 percent of secondary-school-age children were enrolled in school.

Boys and Girls had equal access to state-provided medical care.

Child abuse remained a problem, but there were no reliable figures on its prevalence. In Northern Ireland it is a criminal offense to fail to report most offenses against children. England, Wales, and Scotland do not have such laws. Several NGOs and charities campaigned against child abuse. The minister for children coordinated government policy concerning children and young persons in England and Wales. In Northern Ireland there was a commissioner for children. In Scotland the ministries for education, young people, and communities supervised similar programs designed to protect and provide assistance to minors.

Female genital mutilation (FGM) is illegal. The maximum penalty for aiding, abetting, counseling, procuring, or carrying out this practice is 14 years' imprisonment. FGM was most often practiced by immigrant or refugee groups on girls ages seven to nine from Eritrea, Ethiopia, Somalia, and Yemen. The Department of Health estimated in July 2006 that approximately 74,000 women had undergone FGM and a further 7,000 women were at risk of having the procedure performed on them. In July 2006 the MPS and a number of NGOs began an awareness and prevention campaign focused on this issue.

There continued to be reports that some evangelical Christian immigrants from Africa abused children whom they accused of being witches.

The armed forces accept recruits from age 16, but they are not deployed on operations until age 18.

Trafficking in Persons

The law prohibits all forms of trafficking; however, trafficking remained a problem.

The United Kingdom was primarily a destination, and occasionally a country of transit, for trafficked persons. Although there were no official statistics on the number of trafficking victims, the government has estimated that in

one year as many as 4,000 women in the UK had been trafficked for sexual exploitation. Regions of origin included Central and Eastern Europe - primarily the Balkans and the former Soviet Union - and Asia, including China. Most victims were women trafficked for sexual exploitation. Women, men, and children were also trafficked for labor exploitation in domestic service, agricultural and rural labor, construction, and catering.

Authorities believed that organized gangs were behind most trafficking for commercial exploitation. NGOs claimed that Albanian gangs were heavily involved in prostitution rings in London that used trafficked women. Gangs from the Far East appeared to be increasingly involved in trafficking women from that area. Prosecutions also uncovered East European and Chinese involvement in labor trafficking. Traffickers often lured women by false advertisements of work as restaurant staff, maids, and child minders. Some expected to work in the sex trade but were deceived about working conditions by the traffickers and exploited upon arrival.

Traffickers used a variety of means, including use of valid travel documents, false documentation, and smuggling of aliens past border checks. Authorities believed traffickers frequently used Heathrow airport as a transit point, primarily for trafficking between European destinations.

Traffickers controlled their victims through insistence that they repay endless "debts" for room and board and travel expenses, by withholding their travel documents, by misleading them about law enforcement and immigration penalties, and by threatening violence against them or their families.

Trafficking for prostitution, sexual exploitation, or forced labor carries a maximum sentence of 14 years' imprisonment. The law applies to both citizens and residents, and to acts committed domestically or abroad. The law also prohibits such related acts as keeping a

brothel and causing, inciting, or controlling prostitution for gain. There are severe penalties for such offenses as causing, inciting, controlling, arranging, or facilitating the prostitution of a child. The law also criminalizes paying for sexual services of a child, as well as travel abroad for the purpose of obtaining sexual services from children.

There were reports that children were trafficked into the country and forced to work as domestic servants, beggars, pickpockets, drug couriers, or in sweatshops and restaurants. On March 25, the charity Save the Children reported that gangs trafficked approximately 5,000 children into the country annually and that the number may be increasing. The report also stated as many as 5,000 children may be engaged in prostitution.

Authorities continued to give a high priority to combating trafficking. In 2006 authorities prosecuted 121 trafficking-related offenses involving 109 persons. Trafficking into the country accounted for 58 offenses, trafficking within the country for 60, and trafficking out of the country for four. In the first 11 months of the year, courts convicted 16 persons of trafficking. In 2006 courts convicted 27 persons of trafficking for sexual exploitation, and others of such related offenses as rape, kidnapping, keeping a brothel, and controlling prostitution. There were no convictions during the year of trafficking for labor exploitation under the Asylum and Immigration Act of 2004.

In 2006 police initiated Operation Pentameter in an effort to deal with off-street prostitution. It involved 515 raids on premises throughout the country. In 2006 the operation rescued 84 trafficked women and led to 232 arrests and charges against 134 persons. Police initiated a second phase of the operation in October but data were not available on the number of arrests and prosecutions.

The Home Office is the lead antitrafficking agency. Other cabinet-level departments involved in antitrafficking

include the Foreign and Commonwealth Office, the Department of Trade and Industry, the Department for Education and Skills, the Crown Prosecution Service, and the Department for International Finance and Development. The Serious Organized Crime Agency (SOCA) handles trafficking investigations nationally. A United Kingdom Human Trafficking Center (UKHTC) shares trafficking intelligence with SOCA and develops training modules for attorneys prosecuting traffickers.

The government assisted with international investigations of trafficking.

Immigration officers and airline personnel were trained to identify potential victims of trafficking. The UKHTC has developed training programs that enabled police academies to add trafficking to the list of core police business. The "Paladin" program at Heathrow specifically screened for vulnerable children. Authorities provided short-term residence permits for victims of trafficking who cooperated with authorities in prosecuting their traffickers. The government continued funding the Poppy Project, which provided support services to female victims of trafficking for sexual exploitation if they assist law enforcement authorities. The government did not prosecute victims of trafficking who were violating prostitution or immigration laws; however, authorities could deport them to their countries of origin.

Local social services and charities provided services to trafficking victims. The Poppy Project initiated a national 24-hour outreach service. Local social service agencies were responsible for child victims of trafficking, who were usually placed in the foster care system. The government and the NGO community maintained an active dialogue concerning protection services for victims.

Between January and April, the UKHTC, in collaboration with the Home Office, the Foreign and Commonwealth Office, and the International Organization for Migration

ran an antitrafficking campaign in Romania and Bulgaria, new members of the European Union. The campaign provided a point of contact for victims.

Persons with Disabilities

The law prohibits discrimination against persons with disabilities in employment, education, access to health care, and other state services. The law mandates access to buildings for persons with disabilities, and the government effectively enforced this requirement in practice.

The law requires that all public service providers (except in the transportation sector) make "reasonable adjustments" to make their services available to persons with disabilities. The law forbids employers to harass or discriminate against job applicants or employees with disabilities.

The Disability Rights Commission, an independent organization funded by the government, worked on behalf of persons with disabilities to stop discrimination and promote equality of opportunity. The commission provided legal advice and support for individuals, a hot line for persons with disabilities and employers, and policy advice to the government. The commission may also conduct formal investigations, arrange conciliation, require persons to adopt action plans to ensure compliance with the law, and apply for injunctions to prevent acts of unlawful discrimination.

National/Racial/Ethnic Minorities

The law prohibits racial discrimination, but persons of African and Afro-Caribbean, South Asian, and Middle Eastern origin, as well as Travellers (itinerant populations consisting of Roma, Irish, and other ethnic groups estimated to number 120,000 to 350,000) experienced mistreatment on racial or ethnic grounds.

Travellers claim that their way of life was made more difficult by the Criminal Justice Act of 2003, which

authorizes police to order Travellers' caravans to move on from any rest area or other roadside location. Such locations were previously among the Travellers' primary stopping places. Travellers organizations also reported that local governments across the country were seeking to evict them from so-called "illegal encampments." In one high-profile case, Travellers fought an eviction order by the town council of Basildon, in Essex, seeking to remove them from the Dale Farm Traveller Settlement. At year's end eviction proceedings against residents of the site were on hold while a judiciary review was conducted. The review was expected to be completed in early 2008.

During the year there were no instances of violence against Travellers like the September 2006 attack on a Traveller site by residents of Tamworth, Staffordshire.

Victim Support, an NGO that assists persons affected by crime, reported that it received 29,995 referrals for assistance with racially motivated incidents between April 2005 and March 2007, a 42 percent increase from 2004-05. However, Victim Support believed this increase was primarily due to an improvement in police referrals of such incidents to them. The Crown Prosecution Service, which covers England and Wales, prosecuted 7,430 defendants for racially aggravated crimes between April 2005 and March 2007, up from 4,660 during the previous year. Police in Northern Ireland reported 936 racially motivated incidents during the same period, up by 15 percent from the preceding 12-month period and more than three times the number of incidents reported in 2003. The police service reported 746 racially motivated crimes, including 341 violent crimes, during the same period. In Scotland there were 3,791 racial complaints between 2005 and 2006, a decrease of 160 complaints from the previous year.

Other Societal Abuses and Discrimination

The law prohibits discrimination and harassment based on sexual orientation; however, sporadic incidents of homophobic violence were reported. The law encourages judges to impose a greater sentence in assault cases where the victim's sexual orientation is a motive for the hostility, and many local police forces demonstrated an increasing awareness of the problem and trained officers to identify and moderate these attacks.

Section 6 Worker Rights

a. The Right Of Association

The law provides for the right of workers, except those in the armed forces, public sector security services, and police forces, to form and join unions, and workers exercised this right in practice. Approximately 26 percent of the workforce was unionized. Coverage was most widespread in the public sector, where almost 60 percent of workers were unionized. In contrast, 17 percent of private sector workers were unionized.

b. The Right to Organize and Bargain Collectively

The law allows unions to conduct their activities without interference, and the government protected this right in practice. Collective bargaining is protected in law and was freely practiced. Unions and management typically negotiate so-called collective agreements, less formal than collective bargaining contracts. Collective agreements are considered as "implied" in individual work contracts and are legally enforceable as such. They covered approximately 35 percent of the workforce. Workers have the right to strike and freely exercised it during the year. Under the law, a strike must be confined to workers and their own employers, the dispute must be wholly or mainly about employment-related matters (for example, pay and conditions), workers must be properly and secretly balloted before striking (with notice to the employer), and mass picketing is prohibited.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The government prohibits forced and compulsory labor, including by children; however, there were reports that such practices occurred. There were some instances of forced labor by children.

d. Prohibition of Child Labor and Minimum Age for Employment

The government effectively implemented laws and policies to protect children from exploitation in the workplace.

The law prohibits the employment in any capacity of children under 13. Those under 16 are not permitted to work in an industrial enterprise, including transportation or street trading; their work hours are strictly limited and may not interfere with school attendance. They may work as part of an educational course. Independent NGOs claimed that up to two million school-age children were involved in part-time employment. Children aged 13 to 16 must apply for a work permit from a local authority, and the local authority's education and welfare services have primary responsibility for oversight and enforcement. Authorities effectively enforced these laws. The departments of health, trade and industry, and education and skills also have regulatory responsibilities related to child labor.

Children were trafficked for forced labor.

e. Acceptable Conditions of Work

The national minimum wage, which ranged from \$5.96 to \$10.96 (3.00 to 5.52 pounds) an hour, depending on the age of the employee, did not provide a decent standard of living for a worker and family; however, other government benefits, including free universal access to the National Health Service, filled the gap. Tax authorities may issue compliance orders against employers not paying the

minimum wage, but employment tribunals handle disputes. The government aggressively monitored employer efforts to bring pay practices into compliance with minimum wage law. Unions and NGOs were also actively involved in ensuring employees' awareness of their rights.

The law limits the workweek to 48 hours when averaged over a 17-to 26-week period; however, the regulations do not apply to senior managers and others who can exercise control over their own hours of work. The law provides for one day of rest per week, 11 hours of daily rest, and a 20-minute rest break when the working day exceeds six hours. The law also mandates a minimum of four weeks' paid annual leave, including eight national holidays. However, the average worker nationwide receives five weeks of paid annual leave plus eight bank holidays as part of collective agreements. An individual employee may agree through a contract to work overtime for premium pay. The law does not prohibit compulsory overtime, but overtime is limited by the 48-hour week restriction.

The law stipulates that the health and safety of employees not be placed at risk, and it was effectively enforced by the Health and Safety Executive (an arm of the Department of Work and Pensions), which could initiate criminal proceedings in appropriate cases. Workers' representatives also actively monitored enforcement of the law. Workers may legally remove themselves from dangerous work conditions without jeopardy to their continued employment.